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SUPERIOR

COURT OF CALIFORNIA, COUNTY OF LOS ANGELES

Civil

Division

Central

District, Stanley Mosk Courthouse, Department 311 (formerly 19)

Tentative

Ruling

26STCV05257

CITY

OF INGLEWOOD, A CHARTER CITY AND MUNICIPAL CORPORATION vs D-W-M DEVELOPMENT

COMPANY, A PARTNERSHIP, et al.

June

24, 2026

8:30

AM

NATURE OF PROCEEDINGS:

PLAINTIFF'S MOTION FOR ORDER OF PREJUDGMENT POSSESSION.

RULING:

The Court grants the Motion

and will sign and file the Proposed Order received on February 26, 2026.

I.

BACKGROUND

On February 13, 2026, CITY

OF INGLEWOOD (Plaintiff) filed an Eminent Domain Complaint against D-W-M

DEVELOPMENT COMPANY, et al. (Defendants), to advocate acquiring 224 and 226

North Market Street, in City of Inglewood, for an Inglewood Transit Connector

Project, involving a "Mobility Hub" including connections such as a 1.6 mile

automated transit system between Metro K line and the City's Sports and

Entertainment District.

On February 26, 2026, Plaintiff

filed the Motion, pursuant to Code of Civil Procedure section 1255.410, for an

order authorizing Plaintiff to take prejudgment possession of the subject real

property.

D-W-M DEVELOPMENT COMPANY

(Defendant) opposes, based upon counterarguments such as that the expert Declaration of Sanjeev N. Shah, P.E. filed with the Motion consists of unsupportive conclusions of opinions and incompetent, and Defendant's hardship outweighs Plaintiff's need.

II.

LEGAL STANDARD

The power of condemnation or eminent domain is governed by various statutory provisions, including a requirement of necessity for public purpose for condemning private property. (E.g., Code Civ. Proc., §§ 1240.010, 1240.030; *City of Stockton v. Marina Towers LLC* (2009) 171 Cal.App.4th 93, 107; *Kenneth Mebane Ranches v. Superior Court* (1992) 10 Cal.App.4th 276, 282-283 ["Statutory language defining eminent domain powers is strictly construed and any reasonable doubt concerning the existence of the power is resolved against the entity."]. See also *Joffe v. City of Huntington Park* (2011) 201 Cal.App.4th 492, 504 [outlining many steps required for eminent domain].) An opinion issued by the Court of Appeal, Second District, Division 4, explains The California Relocation Assistance Act (Gov. C. §7260 et seq.),

as follows:

The California Relocation

Assistance Act, codified as Government Code section 7260 et seq., provides for administrative recovery for moving and related expenses incurred by individuals and businesses displaced by public projects. (§ 7262; Arvey, *supra*, 3

Cal.App.4th 1357.) As relevant here, section 7262 provides:

“(a) Whenever a program or project to be undertaken by a public entity will result in the displacement of any person, the displaced person is entitled to payment for actual moving and related expenses as the public entity determines to be reasonable and necessary, including expenses for all of the following:

“(1) Actual and reasonable expenses in moving himself or herself, his or her family, business, or farm operation, or his or her, or his or her family's, personal property.

“(2) Actual direct losses of tangible personal property as a result of moving or discontinuing a business or farm operation, but not to exceed an amount equal to the reasonable expenses that would have been required to relocate the property, as determined by the public entity.

“(3) Actual and reasonable expenses in searching for a replacement business or farm, not to exceed one thousand dollars (\$ 1,000).

“(4) Actual and reasonable expenses necessary

to reestablish a displaced farm, nonprofit organization, or small business at

its new site, but not to exceed ten thousand dollars (\$10,000).”

The California Relocation Assistance Act represents a “legislative

recognition of the need to compensate for certain business losses which occur

as a result of a condemnation action.” (Baldwin Park Redevelopment Agency v.

Irving (1984) 156 Cal.App.3d 428, 438 [202 Cal. Rptr. 792].) However, such

compensation is “independent of the condemnation proceedings.” (Ibid.)

Accordingly, the process by which a displaced property owner may seek

relocation benefits is wholly administrative and “the condemning entity is

vested with substantial discretion in making determinations relative to such

benefits and is required to engage in a fact-finding process to determine the

claimant's eligibility and the appropriate amount of benefits. Any person

aggrieved by such a determination ‘may have the application reviewed by the

public entity.’ (Gov. Code, § 7266.)” (City of Los Angeles v. Decker (1976) 61

Cal.App.3d 444, 451 [132 Cal. Rptr. 188].)

If a property owner is dissatisfied with the relocation benefits

awarded by the condemning entity, he or she may seek judicial review through

administrative mandamus, but may not challenge the award in an eminent domain

action. “In his answer [to an eminent domain complaint], [a displaced property

owner] may not allege the amount of any benefits claimed to be due him under the relocation assistance law, nor may he prove such benefits at the trial of that action. If he has been denied claimed relocation benefits, by adverse action of the condemning public entity upon its 'review' of his claim by its governing body or other appropriate authority [citations], so that he has exhausted his administrative remedy, his only judicial remedy lies in petitioning the superior court for relief in administrative mandamus" (City of Mountain View v. Superior Court (1975) 54 Cal.App.3d 72, 82 [126 Cal. Rptr. 358], italics omitted.)

(Los Angeles Unif. Sch. Dist. v. Casasola (2010) 187 Cal.

App. 4th 189, 203-205.)

Apart from the issue of

valuation, as for the sufficiency or competency of evidence, there is a dearth

of California case law, but cases have generally held that rulings in eminent

domain or condemnation proceedings are to be upheld on appeal if supported by

substantial evidence. (Israni v. Superior Court (2001) 88 Cal.App.4th 621, 636 (Israni)

[citing City of Los Angeles v. Keck

(1971) 14 Cal.App.3d 920, 925-26]. Cf. City of Stockton v. Albert Brocchini

Farms, Inc. (2001) 92 Cal.App.4th 193, 198 [some evidentiary standards are

set by statutory sections, such as for valuation].)

“A trial court enjoys

broad discretion in ruling on foundational matters on which expert testimony is

to be based.” (Maatuk v. Guttman

(2009) 173 Cal.App.4th 1191, 1197.)

For rules applicable to

eminent domain and inverse condemnation, see Los Angeles Superior Court Local

Rules 3.238 et seq.

III.

ANALYSIS

Plaintiff maintains that,

sometimes in condemnation cases, persons subjected to hardship must be

displaced as a result of a project that serves a greater public good, citing Mt.

San Jacinto Community College Dist. v. Superior Court (2007) 40 Cal.4th

648, 658.

Plaintiff objects to the

Motion evidence including as to the issues of overriding need for possession,

and asserts hardship based on the Declaration of Chris Tae showing inability to

find a suitable and affordable relocation site in close proximity, in order to avoid

losing revenue and customers.

“California's

'quick-take' law provides only for an 'order of possession' upon deposit of estimated value. (§ 1255.410.) The date of possession may be postponed on hardship grounds (§ 1255.420), and it may be stayed while the condemnee litigates a potentially meritorious claim that the public agency does not have the right to take the property by eminent domain (§ 1255.430)." (Redevelopment Agency v. Gilmore (1985) 38 Cal.3d 790, 800. Accord, Mt. San Jacinto Community College Dist. v. Superior Court (2007) 40 Cal. 4th 648, 653.)

The statutory scheme

regarding prejudgment possession based upon urgent need may involve the nature of the public necessity to be served by the taking, whether it is reasonably related to the timing issue, and whether to stay due to the relative substantial hardship to parties caused by a quick taking, based upon all relevant facts. (Israni, supra, 88 Cal.App.4th at p. 638.)

Under Code of Civil

Procedure § 1255.420, the court may stay the effective date for immediate possession, if it finds that defendants or occupants will suffer substantial hardship, and finds whether the condemning authority needs possession on that date, or whether it would suffer substantial hardship from an extension of that date. (Id., at pp 640-641.)

Here, the Court finds that

Plaintiff satisfied all applicable factors of Code of Civil Procedure § 1255.010, et seq. and other quick-take law, has the right to take the subject property by eminent domain, and will need possession no later than on October 1, 2026. (See, e.g., Motion, 9:5.)

Further, the Court determines

that Defendant already has had plentiful time and assistance, since March 21, 2023, to relocate in close proximity in order to mitigate hardship and any risks of lost business profits and opportunities, and Defendant still has time left to deliver possession to Plaintiff, which transition shall occur no later than on September 28, 2026, to ensure meeting the deadline of October 1, 2026. (See, e.g., JESSE ORTIZ Reply Declaration, pp. 3-7.)

IV.

CONCLUSION

The Court grants the Motion and allows Plaintiff the authority to take prejudgment possession of the subject property by no later than on October 1, 2026.

Finally, the Court has

considered the filed evidentiary objections in making its ruling. Where all or some evidentiary objections were not expressly ruled upon, appellate courts presume that they have been overruled. (Union Pac. R.R. Co. v. Superior

Court (2024) 105 Cal.App.5th 838, 850 [citing Reid v. Google, Inc.

(2010) 50 Cal.4th 512, 534]. Accord, Valentine v. Plum Healthcare Grp., LLC

(2019) 37 Cal.App.5th 1076, 1089. Cf. Weiss v. People ex rel. Dep't of

Transportation (2020) 20 Cal. App. 5th 1156, 1166 [in eminent domain case, judge

“did not rule on the Agencies’ evidentiary objections.”].)